

October 29, 2008



U.S. Department
of Transportation

East Building, PHH-30
1200 New Jersey Avenue S.E.
Washington, D.C. 20590

**Pipeline and Hazardous
Materials Safety Administration**

DOT-SP 14769

EXPIRATION DATE: April 30, 2009

1. GRANTEE: Pfizer, Inc.
Memphis, TN
2. PURPOSE AND LIMITATION:
 - a. This special permit authorizes the one-way transportation in commerce of certain infectious substances in alternative packagings (freezers), transported by a contract carrier. This special permit provides no relief from the Hazardous Materials Regulations (HMR) other than as specifically stated herein.
 - b. The safety analyses performed in the development of this special permit only considered the hazards and risks associated with the transportation in commerce.
 - c. No party status will be granted to this special permit.
3. REGULATORY SYSTEM AFFECTED: 49 CFR Parts 106, 107 and 171-180.
4. REGULATIONS FROM WHICH EXEMPTED: 49 CFR Subpart C of Part 172 in that the shipping paper requirements are waived; § 172.301(a), (b) and (c) in that the marking requirements are waived; and §§ 173.199 and 178.609 in that testing requirements for packaging are waived.
5. BASIS: This special permit is based on the application of Pfizer, Inc. dated August 26, 2008 submitted in accordance with § 107.105 and the public proceeding thereon.

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6. HAZARDOUS MATERIALS (49 CFR § 172.101):

Hazardous Materials Description			
Proper Shipping Name	Hazard Class/ Division	Identification Number	Packing Group
Biological substance, Category B	6.2	UN3373	N/A

7. SAFETY CONTROL MEASURES:

a. PACKAGING - Packaging consists of large freezers to keep the contents frozen at all times, as described in Pfizer, Inc.'s application for special permit on file in the Office of Hazardous Materials Special Permits and Approvals (OHMSPA).

b. OPERATIONAL CONTROLS -

(1) This special permit authorizes only the transport of packages containing infectious substances from the Pfizer, Inc. facility, 5300 N. 28th St., Richland, MI directly to the Pfizer, Inc. facility, 300 Portage St., Kalamazoo, MI, a distance of about seven (7) miles.

(2) Packages must be prepared by Pfizer, Inc. employees, transported by a contract carrier under Pfizer, Inc. supervision in an exclusive-use trailer, and unpacked by Pfizer, Inc. employees, as outlined in the application for special permit on file with the OHMSPA. The freezers must be loaded on the transport vehicle with oversight from personnel trained in the details of infectious substances in this inventory.

(3) Each freezer must be locked and secured, blocked and braced within the trailer using straps as well as conventional load locking devices to prevent any movement while the shipment is in transit.

(4) An itemized list of the contents in each freezer must be securely attached to the outside of each unit.

(5) The total transit time, including the loading and unloading, should be less than four (4) hours.

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(6) Three (3) shipments are anticipated to complete the transfer. The transfer should be completed by the end of year 2008.

8. SPECIAL PROVISIONS:

a. A copy of this special permit must be maintained at the facility where the packages are offered for transportation.

b. Shipping paper requirements in 49 CFR Subpart C in Part 172 and the marking requirements in § 172.301 (a), (b) and (c) are waived.

9. MODES OF TRANSPORTATION AUTHORIZED: Motor Vehicle.

10. MODAL REQUIREMENTS: A copy of this special permit must be carried aboard each motor vehicle used to transport packages covered by this special permit.

11. COMPLIANCE: Failure by a person to comply with any of the following may result in suspension or revocation of this special permit and penalties prescribed by the Federal hazardous materials transportation law, 49 U.S.C. 5101 et seq:

- o All terms and conditions prescribed in this special permit and the Hazardous Materials Regulations, 49 CFR Parts 171-180.
- o Persons operating under the terms of this special permit must comply with the security plan requirement in Subpart I of Part 172 of the HMR, when applicable.
- o Registration required by § 107.601 et seq., when applicable.

Each "Hazmat employee", as defined in § 171.8, who performs a function subject to this special permit must receive training on the requirements and conditions of this special permit in addition to the training required by §§ 172.700 through 172.704.

No person may use or apply this special permit, including display of its number, when this special permit has expired or is otherwise no longer in effect.

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Under Title VII of the Safe, Accountable, Flexible, Efficient Transportation Equity Act: A Legacy for Users (SAFETEA-LU)—"The Hazardous Materials Safety and Security Reauthorization Act of 2005" (Pub. L. 109-59), 119 Stat. 1144 (August 10, 2005), amended the Federal hazardous materials transportation law by changing the term "exemption" to "special permit" and authorizes a special permit to be granted up to two years for new special permits and up to four years for renewals.

12. REPORTING REQUIREMENTS: Shipments or operations conducted under this special permit are subject to the Hazardous Materials Incident Reporting requirements specified in 49 CFR §§ 171.15 - Immediate notice of certain hazardous materials incidents, and 171.16 - Detailed hazardous materials incident reports. In addition, the grantee(s) of this special permit must notify the Associate Administrator for Hazardous Materials Safety, in writing, of any incident involving a package, shipment or operation conducted under terms of this special permit.

Issued in Washington, D.C.:



for Theodore L. Willke
Associate Administrator for Hazardous Materials Safety

Address all inquiries to: Associate Administrator for Hazardous Materials Safety, Pipeline and Hazardous Material Safety Administration, U.S. Department of Transportation, East Building PHH-30, 1200 New Jersey Avenue, Southeast, Washington, D.C. 20590.

Copies of this special permit may be obtained by accessing the Hazardous Materials Safety Homepage at http://hazmat.dot.gov/sp_app/special_permits/spec_perm_index.htm. Photo reproductions and legible reductions of this special permit are permitted. Any alteration of this special permit is prohibited.

PO: GEC/dl